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OPR: WVOT Cybersecurity

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

Publications are available online at:
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Questions and change recommendations related to this publication shall be directed to this publication's Office of Primary Responsibility (OPR). This policy shall be reviewed every two years to ensure continued alignment with current legal, operational, and strategic requirements. Revisions will be undertaken as necessary.

SUMMARY OF VERSIONS AND CHANGES

Version	Date	Revision Description
Original	04/28/2026	New Policy

1. PURPOSE

1.1. The purpose of this Data Sharing Policy is to establish a clear, consistent, and secure framework for the responsible sharing of data across state government agencies and with external partners. This policy aims to promote transparency, improve public services, support evidence-based decision-making, and foster innovation, while ensuring the protection of personal privacy, data security, and compliance with applicable laws and regulations. One of the biggest disruptors to day-to-day business is meeting and addressing new regulatory standards and data security set forth by Federal and State regulation. The Goal is to remove barriers in taking in the State Agency's IT landscape and facilitate smarter IT choices while aligning with the States' strategic goals.

2. SCOPE

2.1. This Data Sharing Policy applies to all departments, agencies, boards and commissions operating under the jurisdiction of the state government, that is currently supported by WV Office of technology and that collect, generate, store, manage, or use data. It governs the sharing of data both internally among government bodies and externally with approved third parties, including local governments, federal agencies, academic institutions, non-profit organizations, and private sector partners.

2.2. The policy covers:

2.2.1. All data, including personal, sensitive, operational, statistical, and geospatial data.

2.2.2. Data sharing activities conducted for purposes such as policy development, service delivery, research, analytics, public reporting, and innovation.

2.2.3. Both structured and unstructured data, whether shared manually or through automated systems, APIs, or integrated platforms.

2.2.4. The entire data lifecycle, including data access, transfer, use, storage, and disposal as part of a data sharing arrangement.

2.3. Excluded from this policy are data exchanges that are governed exclusively by specific statutory obligations or court orders, or where sharing would compromise security, legal privilege, or public safety.

3. POLICY

3.1. The State Government Data Sharing Policy establishes the principles, rules, and responsibilities that govern the secure, ethical, and lawful sharing of data across state government entities and with external partners. It is designed to facilitate informed decision-making, improve public services, foster collaboration, and ensure transparency—while safeguarding privacy, maintaining data integrity, and complying with all relevant laws and regulations.

3.2. Data is recognized as a strategic asset that must be managed responsibly and shared where appropriate to maximize its value.

3.3. All data sharing must have a clear, defined purpose that aligns with the public interest and state government objectives.

3.4. Sharing must be governed by a formal agreement utilizing the Data Sharing Agreement Template provided by WVOT and guided by this policy, as well as privacy, security, and risk management frameworks.

3.5. Agencies must provide information to the WVOT CIO, as requested.

3.6. All Data Sharing Agreements (DSAs) must be reviewed annually and renewed starting July 1st in coordination with the participating agency.

3.7. Each agreement must be updated and formally executed by the designated signatory authorities from the West Virginia Office of Technology (WVOT), the participating agency, and any relevant vendors.

3.7.1. In the event that a designated signatory is no longer employed, the DSA must be revised to include the appropriate new authorized signatory. Remaining valid signatories must also reaffirm the agreement through their signatures.

3.8. A new Data Sharing Agreement is required for any newly initiated data sharing activity not currently governed by an existing agreement.

3.9. Agencies must submit to WVOT and BRIM all data sharing agreements they maintain with other vendors or state agencies, regardless of whether WVOT is a party to the agreement. These agreements must be incorporated into the annual review process to ensure comprehensive oversight and alignment with statewide data governance standards.

3.10. Operational sustainability- the long-term ability of the state government to maintain, support, and evolve its data sharing practices and infrastructure in a secure, efficient, and cost-effective manner.

3.10.1. Sustainability includes ensuring that data sharing processes are embedded into standard government operations, supported by adequate resources (such as skilled personnel, funding, and technology), and governed by well-defined policies and procedures.

3.10.2. Sustainable operations also require continuous monitoring, capacity building, and adaptation to emerging technologies, legal requirements, and public expectations, ensuring that data sharing remains resilient, compliant, and aligned with strategic goals over time.

3.11. Transparency – Upholding transparency requires the following:

3.11.1. Data Catalog: An accessible inventory of available data classification will be maintained in ITIPS to help users understand what data exists, and how it can be used.

3.11.2. Stakeholder Engagement: Input from the stakeholder and data owners will be sought regularly to guide responsible data sharing practices and update ITIPS.

3.11.3. Clear Consent and Use Information: Where personal or sensitive data is involved, clear communication will be provided about how the data is used, how privacy is protected, and the rights of individuals.

3.12. Supporting Regulatory Safeguards - To ensure that data sharing is conducted responsibly, lawfully, and in a manner that protects the rights of individuals and the integrity of government operations, the State Government Data Sharing Policy is supported by a comprehensive set of regulatory safeguards. These safeguards establish the legal and ethical boundaries within which data can be shared and provide mechanisms for enforcement and accountability.

3.12.1. Key regulatory safeguards include:

3.12.1.1. Information Security Compliance - All data sharing activities must comply with relevant privacy and data protection laws, including [applicable laws such as state privacy acts, national data protection regulations, HIPAA, FERPA, etc.], ensuring that personal and sensitive information is handled lawfully and ethically. Data must be protected in accordance with established state or federal information security frameworks (e.g., NIST 800-53, ISO 27001), including encryption, access controls, audit logging, and regular vulnerability assessments.

3.12.1.2. Data Classification and Sensitivity Controls - Data must be classified according to its sensitivity and risk profile (e.g., public, confidential, restricted), and appropriate access controls and protections must be applied based on that classification.

3.12.1.3. Data Sharing Agreements (DSAs) - Formal agreements must be established between parties to govern data sharing, specifying the purpose, scope, legal basis, roles and responsibilities, data security measures, and procedures for breach notification and dispute resolution.

3.12.1.4. Consent and Ethical Use - Where required, data sharing must be based on informed consent, and all uses of data must align with ethical standards that respect individual rights and community expectations.

3.12.1.5. Oversight and Accountability Mechanisms - Independent oversight bodies or designated data governance bodies shall monitor compliance with data sharing policies and investigate any breaches, misuse, or non-compliance.

3.12.1.6. Training and Awareness - All personnel involved in data handling and sharing must undergo regular training such as data privacy, security practices, legal obligations, confidentiality, and ethical responsibilities.

3.12.1.7. Digital Record/Data Retention and Disposal Policies - Departments/Agencies are responsible for creating and maintaining a Digital Record/Data Retention and Disposal Policy. Shared data must be retained only for as long as necessary to fulfill its intended purpose. It must then be securely disposed of in compliance with applicable laws, organizational data retention policies, and any relevant contractual obligations.

4. POLICY SPECIFIC DEFINITIONS

4.1. Application Programming Interface (API) - a set of defined rules and protocols that allow different software applications to communicate and exchange data with each other. APIs enable systems to interact in a standardized way, allowing developers to access specific functions or data needing to understand the internal workings of the other system.

4.2. Board of Risk and Insurance Management (BRIM) - The WV Board of Risk and Insurance Management which includes the WV State Privacy Office

4.3. Chief Information Officer (CIO) - the senior executive for overseeing an organization's information technology strategy, operations, and resources. In the context of state government, the CIO ensures alignment of IT initiatives with agency goals, promotes cybersecurity and data governance, and provides leadership in the planning, development, and implementation of technology solutions.

4.4. Data - recognized as a strategic asset that must be managed responsibly and shared where appropriate to maximize its value.

4.5. Data Retention - the policies and practices that govern how long data is stored and maintained by an organization before it is archived or securely deleted. Retention periods are determined by legal, regulatory, operational, or contractual requirements and ensure that data remains accessible for as long as it is needed for business, compliance, or auditing purposes.

4.6. Data Sharing - data that is shared between WVOT and the supported Agency or between WVOT or the supported Agency with another unsupported State Agency, Vendor or the public. Data must have a clear, defined purpose that aligns with the public interest and state government objectives. Sharing must be governed by formal agreements and guided by privacy security and risk management frameworks.

4.7. Data Sharing Agreement (DSA) - a formal, written agreement between two or more parties that outlines the terms, conditions, and responsibilities related to the access, exchange, use, and protection of shared data. It defines the purpose of the data sharing, the types of data involved, security and privacy requirements, compliance obligations (such as FERPA, HIPAA, or IRS 1075), and procedures for data handling, retention, and breach notification.

4.8. Digital Record - information or documentation that is created, received, stored, or managed in electronic format. It serves as an official record of actions, decisions, transactions, or communications and must be maintained in accordance with applicable legal, regulatory, and records management requirements.

4.9. Family Educational Rights and Privacy Act (FERPA) is a federal law that protects the privacy of student education records. It grants parents—and eligible students once they reach 18 years of age or attend a postsecondary institution—the right to access, review, and request corrections to their education records, and it restricts the disclosure of those records without prior written consent, except under certain permitted conditions.

4.10. Federal Tax Information (FTI) - any data, document, or record provided by the Internal Revenue Service (IRS) or obtained through an authorized source that contains information about a taxpayer, including return or return information. FTI is protected under the Internal Revenue Code (IRC) §6103 and is subject to strict handling, security, and disclosure requirements as outlined in IRS Publication 1075.

4.11. Health Insurance Portability and Accountability Act (HIPAA) - federal law enacted in 1996 that establishes national standards for protecting the privacy and security of individuals' health information. HIPAA applies to healthcare providers, health plans, and healthcare clearinghouses, as well as their business associates, and governs the use, disclosure, and safeguarding of Protected Health Information (PHI) in both physical and electronic formats.

4.12. Internal Revenue Code (IRC) §6103 - federal statute that governs the confidentiality and disclosure of Federal Tax Information (FTI). It strictly limits how tax return data and related information can be accessed, used, and shared by the IRS, federal agencies, and authorized state or local entities. The provision is designed to protect taxpayer privacy by prohibiting unauthorized disclosure of tax information, with civil and criminal penalties for violations.

4.13. IRS Publication 1075 - guidelines and requirements for ensuring the confidentiality, integrity, and security of Federal Tax Information (FTI). It establishes the standards that federal, state, and local agencies must follow when accessing, storing, processing, or transmitting FTI. The publication outlines physical, administrative, and technical safeguards to prevent unauthorized access or disclosure and ensure compliance with the Internal Revenue Code (IRC) §6103.

4.14. Intergovernmental Relationship Manager (IRM) - a WVOT liaison responsible for facilitating collaboration, communication, and coordination between government entities at various levels (local, state, and federal). This role ensures alignment on shared initiatives, and supports interagency partnerships to achieve common goals.

4.15. Information Security Officer (ISO) is the individual responsible for establishing, implementing, and maintaining an agency's information security program. The ISO ensures compliance with applicable security policies, standards, and regulations, manages risk, and oversees the protection of information systems and data from unauthorized access, disclosure, or disruption.

4.16. Information Technology Investment Portfolio System (ITPS) - the West Virginia Office of Technology's centralized platform for managing, tracking, and reporting information technology investments across state agencies. It also serves as the official system of record for WVOT to document Data Sharing Agreements.

4.17. National Institute of Standards and Technology (NIST) - federal agency within the U.S. Department of Commerce that develops and promotes measurement standards, including widely recognized guidelines for information security and cybersecurity. NIST's frameworks, such as the

NIST Cybersecurity Framework and NIST Special Publication 800 series, are used by government agencies and private organizations to establish and maintain robust security and risk management practices.

4.18. NIST Special Publication 800-37 (SP 800-37) - titled "Risk Management Framework for Information Systems and Organizations," is a publication by the National Institute of Standards and Technology (NIST) that provides guidelines for applying the Risk Management Framework (RMF) to federal information systems. It outlines a structured, lifecycle-based process for managing security and privacy risks through steps such as system categorization, control selection and implementation, assessment, authorization, and continuous monitoring. SP 800-37 is widely used across federal and state agencies to ensure compliance, strengthen cybersecurity, and support informed risk-based decision-making.

4.19. Privacy Framework - structured approach that organizations use to identify, manage, and mitigate privacy risks related to the collection, use, sharing, and storage of personal data. It provides a set of principles, policies, and controls designed to ensure compliance with privacy laws and regulations, protect individual rights, and promote responsible data governance. Notable examples include the NIST Privacy Framework and the OECD Privacy Principles.

4.20. Protected Health Information (PHI) - individually identifiable health information that is created, received, maintained, or transmitted by a covered entity or its business associate, as defined by HIPAA. PHI includes data related to an individual’s past, present, or future physical or mental health condition, the provision of healthcare, or payment for healthcare services, and can exist in any form—electronic, paper, or oral.

4.21. Organization for Economic Co-operation and Development (OECD) Privacy Principles - a set of internationally recognized guidelines developed by the OECD to promote the protection of personal data and privacy across member countries. Originally established in 1980 and updated in 2013, these principles include key concepts such as collection limitation, data quality, purpose specification, use limitation, security safeguards, openness, individual participation, and accountability. They serve as a foundational framework for many national and international privacy laws and policies.

4.22. Renewal - the process of formally reauthorizing a Data Sharing Agreement (DSA) on an annual basis to ensure continued compliance with legal, security, and data governance requirements. **Renewal must occur by July 1st each year and requires new signatures from all appropriate parties to the agreement**, reaffirming all terms, conditions, and responsibilities outlined in the original agreement. This ensures that data sharing activities remain valid, current, and aligned with applicable policies and regulations.

4.23. Review - the formal process conducted annually by the West Virginia Office of Technology (WVOT) in coordination with the participating agency. This process involves a comprehensive examination of each existing DSA by WVOT and participating agencies to ensure its continued accuracy, relevance, and compliance with current legal, operational, and organizational standards. The review includes:

4.23.1. Verifying that the terms and conditions reflect current data sharing practices;
4.23.2. Confirming the continued participation and authority of all designated signatories;
4.23.3. Identifying and addressing any required updates or amendments;
4.23.4. Ensuring that any changes are formally executed by all required signatory authorities, including WVOT, the participating agency, and any involved vendors.
4.23.5. Reaffirming the agreement through updated signatures where necessary, especially in cases where a previous signatory is no longer employed.
4.23.6. The WVOT Security Auditing and Review Team assesses all yearly reviews, all new DSAs, DSA changes in the agreements as well as changes in the signature authorities. Other WVOT Teams may be included in the reviews as needed.
4.23.7. Each assigned Intergovernmental Relationship Manager (IRM) will be included in the review process and responsible for obtaining the required signatures.
4.23.8. In addition, the review process ensures that a new DSA is initiated and executed for any new data sharing activity not currently covered by an existing agreement.

4.24. Risk Management Framework (RMF) - a structured, repeatable process used to identify, assess, manage, and monitor risks to organizational operations, assets, and individuals—especially in the context of information systems. RMFs provide a disciplined approach to integrating security and risk management into the system development life cycle. A widely used example is the NIST Risk Management Framework (SP 800-37), which guides federal agencies in applying security controls and maintaining ongoing authorization to operate (ATO).

4.25. West Virginia Office of Technology (WVOT) - the state agency responsible for providing centralized information technology services, infrastructure, and governance to support the operations and security of executive branch agencies.

5. RELEVANT MATERIALS AND DOCUMENTS

5.1. Internal Revenue Code (IRC) §6103

5.2. IRS Publication 1075, Tax Information Security Guidelines

5.3. NIST SP 800-37, Risk Management Framework for Information Systems and Organizations

5.4. Data Sharing Agreement Template
(Version 1.1 - 09/22/2025 located in Google Docs Template gallery)

5.5. WVOT Policies Issued by the Chief Information Officer (CIO), https://sites.google.com/wv.gov/othub/policy-governance/ot-policies